

Conservatorship of Duenas, Janelli

26-47375

REVIEW HEARING

TENTATIVE RULING: After a review of the matter, the Court finds the Conservator is acting in the best interest of the Conservatee. Thus, the case is set for a Review – Biennial hearing in two years, on September 01, 2028, at 8:30 a.m. in Dept. B. The Court Investigator shall prepare a biennial investigator report for the next hearing date. The Clerk is directed to send notice to the parties.

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Conservatorship of Neller, Adam Thomas

26-52441

REVIEW HEARING

TENTATIVE RULING: After a review of the matter, the Court finds the Conservator is acting in the best interest of the Conservatee. Thus, the case is set for a Review – Biennial hearing in two years, on September 01, 2028, at 8:30 a.m. in Dept. B. The Court Investigator shall prepare a biennial investigator report for the next hearing date. The Clerk is directed to send notice to the parties.

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****at 9:30 a.m.****

In The Matter of The Charles and Gwendolyn Olson Estate

26PR000062

REVIEW HEARING

APPEARANCE REQUIRED

CIVIL LAW & MOTION CALENDAR – Hon. Joseph J. Solga, Dept. B (Historic Courthouse) at 8:30 a.m.

Balcal Construction, Inc. v. Suzanne Giraud et al

23CV001364

DEFENDANTS/CROSSCOMPLAINANTS' MOTION TO COMPEL FURTHER
RESPONSES TO REQUESTS FOR ADMISSIONS, SET TWO AND FORM
INTERROGATORY NO 17.1, SET TWO

TENTATIVE RULING: The motion is DENIED.

A. PROCEDURAL MATTERS

Defendants/Cross-Complainants, Louis & Suzanne Giraudo (“Giraudos”) move, pursuant to Code of Civil Procedure, sections 2030.300 and 2033.290,³ for an order compelling Plaintiff/Cross-Defendant, Balcal Construction, Inc. (“Balcal”) to serve further responses to Request for Admissions, Set Two, Nos. 9-137 (“RFAs”) and Form Interrogatory, Set Two, No. 17.1, served on Balcal on May 26, 2026. Giraudos further move for monetary sanctions against Balcal and its counsel in the amount of \$6,740.

The moving party failed to timely file and serve their motion, and the opposing party failed to timely file and serve their opposition. While Balcal raises the notice defect in Opposition, it also provides a substantive opposition to the merits of the motion. For that reason, and in light of the upcoming trial date, the Court elects to consider both the moving and opposing papers.

By Minute Order dated October 7, 2025, the present action was consolidated with later-filed *Giraudo et al v. BalCal Construction Inc. et al*, case no. 25CV000306, which essentially constitutes Giraudos’ additional crossclaims against Balcal.⁴ As part of that order, the Court allowed specified discovery to reopen “for [a]ll elder abuse and expert discovery.” (10/7/25 Minute Order.) On December 2, 2025, the consolidated matter was set for trial for October 26, 2026.⁵

B. DISCUSSION

Balcal objected to all 128 RFAs and Form Interrogatory No. 17.1 (as to all RFAs), stating, for the most part, “Discovery is only still open with regard to the Elder Abuse matter in his case. Questions related to the construction contract, scope of work documents, change orders, and schedule of values do not apply to elder abuse. This question clearly relates to construction, and is nearly identical in style and purpose as all prior discovery propounded by Defendant and Cross Plaintiff. As such, discovery on those issues has been closed, and Plaintiff objects to such question, and will not be providing an answer to this question.” (Mem., p. 8.)

The Court has reviewed the RFAs, attached as Exhibit D (PDF pp. 49-69) to the Declaration of Vincent Spohn. The RFAs pertain to the construction work by Balcal and several change orders that have been at issue in this case since its conception. Indeed, the Giraudos’ November 21, 2023 Cross-Complaint raised the change orders as an issue in the case. (See Cross-Complaint, filed 11/21/23, in case no. 23CV001364, ¶¶ 14, 39.) In fact, the Court notes

³ All subsequent statutory references are to the Code of Civil Procedure unless otherwise specified.

⁴ The Giraudos filed a Cross-Complaint, asserting seven causes of action against Balcal, in first-filed case no. 23CV001364 on November 21, 2023.

⁵ Prior to the December 2, 2025 trial setting, trial in the first-filed matter had previously been continued three times and once vacated. It was originally set for November 18, 2024. (04/03/24 Minute Order.) Giraudos moved to continue the trial and related pre-trial deadlines on no less than four occasions, and Balcal moved for a trial continuance once. (08/15/25 [denying Defendants’ motion to continue trial]; 09/13/24 Minute Order [granting Defendants’ motion and continuing trial to 03/17/25]; 02/07/25 Minute Order [granting Defendants’ motion and continuing trial to June 2, 2025]; 04/22/25 Minute Order [granting Plaintiff’s motion and continuing trial to October 13, 2025]; 10/07/25 Minute Order [granting Giraudos’ motion to reset trial].)

that the paragraphs listing the facts which comprise Balcal’s liability in Giraudos’ November 21, 2023 Cross-Complaint (Paragraph 14) and Giraudos’ FAC (Paragraph 15) are substantially similar. Facts alleged in the November 21, 2023 Cross-Complaint have been an available subject of discovery since 2023. Thus, to the extent the same facts comprise the Giraudos’ FAC, the order reopening discovery in 2025 was not intended to apply thereto.

Giraudos appear to concede that the RFAs pertain to the construction work and change orders. (See Mem. 11:12-14.) They argue that those RFAs are still relevant to the third element for elder abuse which requires Giraudos to demonstrate Balcal’s conduct was for wrongful use, with intent to defraud, or through undue influence. (Mem., 11:14-16; Reply, 3:9-19.) Giraudos additionally argue that Balcal has failed to meet its burden by failing to explain why the RFAs are irrelevant to the elder abuse claim.

Balcal makes clear that the issue is less about the relevance of the RFAs to the elder abuse claim, and more about the fact that discovery closed as to issues predating Giraudos’ FAC. (See Opp., 5:25-6:2.) Balcal contends that the subject discovery requests are “principally similar to discovery that has been ongoing for nearly three years of litigation.” (*Id.*, 6:5-7.) Thus, Giraudos’ RFAs are “an improper attempt to circumvent the discovery cutoff and the limited scope of discovery remaining in this action.” (*Id.*, 6:3-5.)

The Court finds that Balcal has met its burden to justify its objection on the ground that the scope of the subject discovery exceeds the scope allowed by the Court’s October 7, 2025 Order for “elder abuse.” Again, the order reopening discovery was not intended to reopen discovery as to issues that were active in this case from its inception. Rather, the purpose was to allow discovery into areas that only became available upon the filing of the newly-asserted elder abuse claim. The fact that Balcal’s wrongdoing is a fact at issue for elder abuse does not reopen discovery into that general alleged wrongdoing, upon which the case has been based since Giraudos’ Cross-Complaint filed in 2023. Notably, the order reopening discovery did not allow for discovery regarding Giraudos’ newly-asserted embezzlement claim, which asserts the same wrongful conduct by Balcal as that included in Giraudos’ elder abuse claim. (Giraudos’ FAC, ¶¶ 26-28, 44-46.)

Based on the foregoing, the Motion is DENIED. Giraudos’ request for sanctions is therefore DENIED.

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Caroline Geitner v. Tia Sonesouphab et al

24CV002118

MOTION FOR RELIEF FROM WAIVER OF OBJECTIONS TO DEFENDANT'S REQUESTS FOR SPECIAL INTERROGATORIES

TENTATIVE RULING: The motion is GRANTED.

The moving party failed to include in the notice of this motion proper notice of the Court’s tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies